



File No.: EXP202209886

RESOLUTION ON THE FILING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On August 27, 2022, a complaint was filed with the Spanish Agency for Data Protection against INGKA CENTRES JEREZ, S.L.U., with NIF B84583939 (hereinafter, the respondent).

The reasons for the complaint are as follows:

In the LUZ SHOPPING SHOPPING CENTER owned by the respondent, surveillance cameras are installed. These cameras perform visitor analysis and recognition of the clothing of users of the shopping center, without adequate information being provided, as there is no signage at the entrances that properly informs about this circumstance, nor at all entrances, referring to surveillance in a general manner on the shopping center's website.

There are cameras that apparently record the public road, specifically mentioning cameras numbered C3A and C3B.

The complainant also states that license plates of all vehicles are apparently recorded for statistical analysis and that data cross-referencing could be performed between license plates and IKEA loyalty data (which has a store in the shopping center), as well as monitoring the license plates of the center's employees.

The visitor analysis tool with clothing recognition was operational until December 23, 2022.

Relevant documentation provided by the complainant:

Images of the cameras, a map of their location, and signs indicating the surveillance area.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on September 21, 2022, as stated in the certificate in the file.

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On October 13, 2022, this Agency received a request for an extension of the deadline.

On November 4, 2022, in response to the forwarding of the complaint, the respondent provided information and documentation regarding the three surveillance systems they have installed. They report the following:

SYSTEM I, GENERAL SURVEILLANCE SYSTEM.

They indicate that the legitimizing basis for the processing is public interest. This system has 98 cameras, some of which are inoperative. They report that the cameras of System I do not capture adjacent land not owned by the respondent because they have privacy masks; they only capture a portion of the public road proportional to their purpose (in Annex 1, they provide information on the number and type of camera, identification of its location, retention period of images (30 days), whether or not it has a privacy mask, and images showing the field of view).

They clarify regarding the capture of images in part of the public parking lot, due to the fact that criminal acts often occur in that area, the mobile cameras are in a fixed position capturing the private surroundings of the center. However, on occasions, and with prior knowledge of the center's security area, some situations contrary to security may access this part of the public parking lot only for the minimum necessary time to determine if it is a criminal act. This viewing is carried out by authorized

personnel (they provide a list of this personnel) through restricted access with a username and password. The extraction of recordings made available to the Security Forces is carried out by team leaders, authorized by the center's security manager (they provide Annex 4 with authorized personnel, profiles of team leaders, and access levels).

They also add that, regarding the capture of the private part of the shopping center's parking lot, they would be legitimized as they are part of the Urban Conservation Entity of the Specific Modification No. 31 of the P.G.O.U. of Jerez de la Frontera - Zone 1 of Area 7 - Carretera del Calvario - Hijuela de Rompecerones (EUC) (they provide Annex 5 with a legal note prepared by the legal advisory of the EUC).

They indicate that among the functions of the EUC is to ensure the proper use of the elements of the internal urbanization whose conservation it is responsible for, collaborating with the City Council on these matters. Thus, it is included in the Statutes, among others, security and surveillance competence.

They state that the cameras do not allow viewing or capturing of adjacent lands that are not owned by the respondent since they have privacy masks that prevent such viewing and capturing, indicating that this circumstance can be observed in Annex 1. They indicate that in Annex 5 (which is actually Annex 6), it is shown how they proceeded to uninstall the cameras identified in the complaint as C3A and C3B, which in the complaint were indicated to be pointing

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to the public road. It is verified that in Annex 6 they provide photographs of the camera masts in which the non-existence of a camera is evident, only the mast. They provide information in Annex 7 regarding the display monitors located in building 13 of the shopping center plan, where the Luz Shopping control center is located, indicating that these monitors are restricted access for authorized security personnel for viewing.

In Annex 14, they collect information about the content of the informational sign and the location of the various signs. They provide an anonymized list of personnel authorized by the Head of Security to access the shopping center's security control center as Annex 16.

In this Video Surveillance System I, they have contracted security companies, PROSEGUR CIA DE SEGURIDAD, S.A., until March 31, 2022, and since then, CBRE CORPORATE OUTSOURCING, S.L. (they attach Annexes 17 and 18, copies of contracts with both companies).

For the security guard service, they have contracted the company PROSEGUR SOLUCIONES INTEGRALES DE SEGURIDAD ESPAÑA, S.L., with which they have a data processing agreement (they provide a copy as Annex 19) indicating that they have access to the images of the system.

As Annexes 20 and 21, they attach technical reports on the operation and verification of the system from the contracted security company. The images are retained for a period of 30 days, as Annex 22 provides a certificate issued by the security company.

SYSTEM II OF VISITOR FLOW CONTROL AND ANALYSIS.

System II for controlling visitor flow consists of two subsystems or solutions:

1. Regarding the first solution, they report that its purpose is to count the number of people accessing the center in an anonymized manner, not allowing the processing of personal data, as well as having a privacy mask called "filter blur" that prevents the capture of images of customers by distorting faces, not allowing identification or making individuals identifiable. It is also a system with which images cannot be viewed, nor are they recorded.

2. Regarding the second solution, they state that it consists of a visitor analysis tool that allows for the creation of statistics to know which establishments in the shopping center are the most visited. They indicate that this system is composed of 25 indoor cameras that only capture the private area of the shopping center. These cameras capture the color, shape, and texture of customers' clothing, so the claiming party states that it does not capture personal data. However, they indicate that images may be captured incidentally, including some faces, but that they are only retained for 24 hours. They state that the service provider would only access these images if necessary for the technical maintenance of the system, that the

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The recordings are stored locally in the shopping center. The staff of the responding party does not require access to these images, except in the case of a technical incident, and access to the images is not available; only anonymized statistical reports are obtained.

They inform about the existence of informational posters regarding these cameras, as well as an informational clause available via a QR code included in the posters. Information regarding this is also provided in the privacy policy on the shopping center's website:

<https://www.luzshopping.com/es-es/privacy-policy>.

In Annex 15, they provide the content of the poster for the visitor control system and its locations.

SYSTEM III, LICENSE PLATE CONTROL.

Regarding System III for license plate control, they state that it is a system that was not installed on their own initiative but at the request of the Security Forces and that it only captured the license plates of cars. It is a system composed of five cameras, and it was deactivated as a preventive measure. The processing was carried out to assist the police.

They assert that many claims made in the complaint are incorrect, specifically the one regarding the possibility of identifying the vehicles of the shopping center employees, in a supposed economic benefit that this activity would provide, and in a collaboration with IKEA by cross-referencing data from this system with that of the "IKEA Family" loyalty card. These claims are incorrect; the system only collects license plates, no additional data (they provide Annex 10 and 11 with excerpts of images from this system and an email from Prosegur explicitly stating that the system only allows the capture of the license plates of cars passing through the shopping center).

They indicate that the purpose of this system is the investigation by the Security Forces of illicit actions committed in the vicinity of the shopping center. The responding party also states that it does not cross-reference data with IKEA, and that the privacy policy referred to in the complaint belongs to IKEA and, therefore, does not apply to the responding party. The data from the responding party's system and that of the IKEA Family card represent two completely different processes carried out by different entities.

As the only interested party in this system is the Security Forces, the responding party has requested them to express their opinion on the necessity of maintaining this system. As a preventive measure and until a response is received, they indicate that it has been uninstalled (they provide Annex 12 and Annex 13 to substantiate this with photos showing that the cameras are not present and a responsible declaration signed by the representatives of the shopping center attesting to this reality).

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THIRD: On November 27, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

The complained party has been requested to provide information and documentation regarding solution 2 of System II (visit analysis), which processes images concerning the color, shape, and texture of customers' clothing. Specifically, documentation evidencing the Data Protection Impact Assessment conducted in their case regarding the treatments performed has been requested, as well as information about the purpose of the processing and other aspects related to clothing recognition, such as the possibility of tracking individuals and profiling.

From the response received, the following can be inferred:

1. Regarding the detailed uses and purposes of recognizing the clothing of individuals, and the purposes for which the data generated by the system is used.

The representatives of the complained party indicate that the purpose was to identify the influx of visitors to the shopping center and to generate anonymized statistics to analyze the viability and profitability of the stores located in the shopping center, and to reorganize the space based on this information. The information generated by the tool would allow the complained party to obtain insights on, for example, which stores in the shopping center are the most visited or what the average length of stay of visitors in each store is.

They indicate that the operation is based on analyzing the size, color, and shape of the clothing of visitors to the shopping center, which allows for understanding:

- Which stores are the most frequented;
- How much average time visitors tend to spend inside the store;
- What percentage of visitors are men and what percentage are women. However, they specify that this information is not decisive or necessary for the intended purposes, given that such information is merely indicative, as we cannot overlook that identifying the size, color, and shape of a visitor's clothing is not decisive in a society like the current one, where fashion trends are not linked to a specific gender.

They state that this information would allow for making decisions such as, for example, the location of the stores in the shopping center or their profitability and viability, and that this information is important for determining which stores are economically viable to maintain in the shopping center and which others may be replaced for not achieving the expected profitability.

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2. Regarding whether the recognition of the color, shape, and texture of clothing is used for tracking subjects moving from one camera's field to another (tracking).

They declare that they do not track visitors, indicating that neither the tool allows it nor is it the object or purpose of the same, as it is exclusively intended to count the influx to the different stores in the center.

They add that the operation of the tool consists of two phases:

- A first phase aimed at counting people through the color, shape, and texture of the visitors' clothing. For this phase, it is necessary to install cameras at the entrance of the stores in the shopping center that, merely as an accessory due to the characteristics of the system, can capture a real-time image of a person. These cameras are fixed and capture exclusively the internal access area of the store. They provide a pdf document in which, as an example, the location of the installed camera can be verified, as well as the area of the store that it captures.
- A second phase in which the tool's algorithm transforms the clothing from the captured image into an alphanumeric code called "object ID," which allows identifying, for example, the number of red t-shirts that have entered a store. It indicates that this is, therefore, an anonymized data.

They also state that:

- The treatment of the visitor's image is discarded once the identifying alphanumeric code of the clothing has been created.
- The only relevant information for the system is how many people enter the stores and not who does so.
- There is no material or operational capacity, directly or indirectly, to associate that anonymized code generated to a physical person, as it must be put into context that the alphanumeric code generated by the tool (object ID) is about the visitors' clothing and not about the visitors themselves.
- The generated object ID only serves to count the visitors who access a store and does not allow tracking them across the different stores in the shopping center. In other words, it is not possible to know that an object ID has entered two different stores, but only that a number of object IDs have entered a certain store and have remained in it for an average of, for example, 30 minutes.

They add that tracking would also not be technically possible in their case given that:

- There is no connection between the cameras belonging to this system that allows tracking visitors through the different stores in the shopping center or their surroundings.
- There is no installation that records the internal or external area of the shopping center beyond the access door to the stores, so even if this were the intention, it would not be possible to track visitors with this tool.

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- There is also no connection or sharing of information between the video surveillance system installed for security purposes at the shopping center and the visitor analysis tool in order to track visitors for security purposes.

They conclude that the tool does not track, nor does it allow tracking of, individuals visiting the shopping center.

3. Regarding the results provided by the system as it is currently configured.

For verification, the responding party has been requested to provide copies of the last three generated reports, indicating that their representatives stated the following: the information provided by the system is statistical in nature and anonymized, not linked to the physical persons visiting the center. The system provides, specifically, statistical and anonymized information about: (i) the volume of visits per store; (ii) the occupancy percentage of the store; (iii) the average time spent in the store; as well as (iv) an approximation of the gender of the visitors determined by the size and color of their clothing. They provide, as Annex Document 2, a copy of the control panel of the tool. It is verified that they provide five screenshots showing various data such as total visits and visits by store, data by dates, percentages, data by day of the week, by hours, data on maximum occupancy and duration times, number of visits by men and women, etc., with all observed data being numerical data regarding visits to the shopping center.

They also provide copies of daily, weekly, and monthly reports (Annex Documents 3, 4, and 5) in which it is verified that the same type of aggregated data is included.

4. Regarding whether the system has been used to track any specific person, even if not identified (for example, someone who allegedly committed a criminal act in the shopping center, or for other reasons).

The representatives of the responding party have stated in this regard that tracking a specific person who may have committed a criminal act in the center or not is not possible through this system for the following reasons:

- The information provided by the visitor analysis tool does not identify, nor does it allow in any way to identify, the individuals accessing the shopping center.
- The different cameras installed are independent of each other and do not allow linking the images obtained through one camera to another. That is to say: (i) there is no communication between the video surveillance system for security purposes and the visitor analysis tool; nor (ii) is there communication between the different cameras belonging to the visitor analysis tool.
- The Center already has a video surveillance system installed in its facilities for the purpose of preventing illicit actions and protecting the facilities and

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assets, as well as the safety and integrity of the individuals who visit it; being, exclusively, this system the one that allows detecting any illicit act, or suspicious of constituting an illicit act, that occurs within the shopping center. Additionally, the individuals responsible for the video surveillance system for security purposes are external, as the security of the center is subcontracted to the entity PROSEGUR

SOLUCIONES INTEGRALES DE SEGURIDAD ESPAÑA, S.L., which provides security guards for the performance of that task.

5. Regarding whether any type of profiling of individuals is conducted with the data from the system. The representatives of the responding party state that, by virtue of the characteristics and purposes of the visitor analysis tool, no profiles of individuals are created nor is it possible to create them since the information provided by the system does not allow knowing the identity of the individuals accessing the Center, given that this information is merely statistical and anonymous. They indicate that this statistical and anonymized information displayed on the control panel cannot, in any case, be connected with the images that, incidentally, are captured by the cameras installed at the entrances of the stores. They point out that: (i) the capturing of images is merely incidental and derived from the technical characteristics of the system; and (ii) the images are captured, incidentally in real-time, which in no case would allow relating the anonymous data provided by the tool with the specific individuals accessing the stores of the shopping center. They state that the European Data Protection Committee points out that a simple classification of individuals based on known characteristics such as their age, sex, and height does not necessarily lead to the creation of a profile, but will depend on the purpose of the classification; specifying, in particular, that if the purpose is not to evaluate individual characteristics, it is not a profile creation. They add that, in the present activity, the ultimate purpose is not to evaluate the individual characteristics of a natural person since the information obtained from the visitor is the size, color, and shape of the clothing and therefore their identification does not occur nor is it possible. They assert that, for all the aforementioned reasons, no type of profiling is conducted with the information provided by the system.

6. Information has been requested regarding the application used and the possibilities it allows. The responding party indicates that the visitor analysis tool used is called Deep North, with its manufacturer being Deep North, Inc. They indicate that the contractual relationship established between the responding party and Deep North is carried out through the entity Deep North, AB, with its registered office in Stockholm. The responding party indicates that it only has knowledge of the service it contracted with Deep North related to the installation of a tool that allows counting the volume of visitors to the stores that make up the Luz Shopping shopping center.

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7. Information on whether the application uses

Machine Learning

or any other type of Artificial Intelligence technique.

The representatives of the responding party have stated that the Deep North application uses the Machine Learning technique, which employs body-based algorithms, where the processing of information is based on characterizing objects according to the color, shape, and texture of clothing, not on the image of the visitor to the center.

8. Regarding the Data Protection Impact Assessment.

The representatives of the responding party have stated that upon the installation of a new tool, they carry out:

- A privacy assessment by design and by default that is monitored and updated throughout the entire lifecycle of the installed tools. They indicate that this assessment analyzes, from a privacy perspective, the functioning of the tool, its intended use, and the impact that this tool could have in the event that its use involves the processing of personal data. In this case, an assessment was conducted by design and by default both at the time the tool was being analyzed for implementation and subsequently on September 14, 2022, when the security measures implemented were monitored.
- An impact assessment related to data protection whenever, following the privacy assessment by design and by default, it is deemed necessary. They indicate that this assessment aims to identify the

potential risks associated with the solution used in order to: (i) identify and establish any necessary security measures to mitigate the identified inherent risks; and (ii) determine whether, after the application of the security measures, the residual risks are sufficiently high to warrant a consultation with the competent Supervisory Authority, in this case, the Spanish Data Protection Agency.

They state that once the privacy assessment by design and by default was conducted, they adopted the following security measures aimed at minimizing the identified inherent risks:

- Data minimization, as the data collected primarily consists of the color, shape, and texture of customers' clothing. However, as previously mentioned, due to the technical characteristics of the system, capturing customers' faces as an accessory is inevitable, but it is not analyzed by the system in any case.
- Information in accordance with the provisions of Article 13 of the General Data Protection Regulation (hereinafter, GDPR) made available to the interested parties in this regard.
- Storage of information for the minimum period required by the system, 24 hours.
- Limitation of the profiles that access the system.

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They also state that as part of the risk management processes, specifically in the monitoring of the same, throughout the lifecycle of the solutions installed at the center, a review of the initially conducted assessment was carried out on September 14, 2022, with the following purposes: (i) to verify that the previously described security measures, and the result of privacy by design, had been correctly implemented; (ii) to verify that they were being executed correctly; and (iii) to be able to detect, if applicable, failures related to those controls.

As a result of this evaluation, they report that they identified additional risks regarding the tool, the need for remediation of which was communicated to the provider, with whom a series of mitigating measures were agreed upon. During the time these measures were being developed and implemented, the decision was made to suspend the use of the tool and to continue using, exclusively, the visitor counting tool whose replacement was being evaluated and which, ultimately, provided information about the volume of people visiting the center.

They provide an impact assessment (Annex Document 7). It is verified that this is a document in English whose purpose is to evaluate a solution from Deep North, described as a system for performing customer analytics in stores using cameras to anonymously count store visitors and gain deep insights into visit patterns. It is indicated that the Deep North AI platform uses algorithms based on clothing, where data processing is based on the color, shape, and texture of clothing, without using special category data in the analysis, and that the purpose of the system is to collect data to perform statistics and analysis with metrics at an aggregated level. Damages, potential sources of risks and damages, categories of individuals, and mitigation controls to reduce or eliminate risks are identified. Additionally, they provide a document identifying the risks associated with the tool (Annex Document 8).

9. Informational poster of the system.

In Annex 15 of the response to the transfer of the claim, the representatives of the responding party provided the content of the informational poster of the video surveillance system for visitor control, where it was stated as follows: "We use video surveillance for the purpose of conducting visit and attendance analysis. This helps us understand how our visitors use our meeting place. For this purpose, the limited personal data captured will be temporarily stored for a period of 24 hours, after which it will be deleted. The legal basis for processing the data is our legitimate interest in collecting analyses on visits and public attendance at the meeting place in order to improve the experience of our visitors."

At <https://www.luzshopping.com/es-es/privacy-policy>, the URL mentioned above verifies that it states:

"Security Cameras (CCTV), for the safety of our visitors and the workers of the center, images are recorded in the shopping center. The images are stored in accordance with current legality. Likewise, at our meeting place, we use video surveillance technology to conduct visit and attendance analysis. This helps us understand how users utilize..."

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our Meeting Place. This technology uses algorithms based on clothing recognition to create these analyses. It does not involve the processing of any biometric data or "special category data." The only data we process is your clothing, and only as part of the general movement pattern in the Meeting Place – in no case to see how the user, as an individual, uses our Meeting Place. The data is only retained for 24 hours, after which it is deleted. The legal basis for processing this personal data is our legitimate interest in collecting analyses on visits and foot traffic in the Meeting Place in order to improve the visitor experience.

10. Operating period of the system.

Representatives of the defendant party have stated that the visit analysis tool was only operational in the shopping center from July 2022 until December 23 of the same year. They indicated that the installation of this tool is part of a project carried out in the shopping center to determine whether this new tool was sufficiently operational to replace the other solution currently installed for the anonymized counting of visitors to the center; given that the new tool would provide more useful anonymous information for analyzing the profitability of the stores in the center, among other issues.

11. Information regarding the existence of Monitors with image visualization and Information about the profile of the personnel who have access to the system.

They indicate that there are no monitors for the visit analysis tool that allow for the visualization of images of customers attending the shopping center.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide all the information indicated below at the time of obtaining such data:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;

- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

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3. When the data controller intends to process personal data for a purpose other than that for which it was collected, they shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of access, alignment, combination, restriction, erasure or destruction;”

Images generated by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

Regarding processing for surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of ensuring the safety of persons and property, as well as their facilities.

Furthermore, they may inform that there is a monitored area, as established by Article 22.4 of the LOPDGDD, which states:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informative device.

In any case, the data controller must keep the information referred to in the aforementioned regulation available to the affected parties."

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

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The application of the principle of data minimization in the area of surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Corps.

In some cases, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

Under no circumstances will the use of surveillance practices beyond the area subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

IV

Principles related to processing

Letter b) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

b) collected for specified, explicit, and legitimate purposes, and shall not be further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes ('purpose limitation');"

V

Conclusion

The facts subject to the complaint are specified as follows: first, in the claimed Shopping Center, there are cameras that perform visitor analysis and recognition of the clothing of users of the shopping center, without adequate information, as there is no signage at the entrances that adequately informs of this circumstance, nor at all entrances, making reference to surveillance in a general manner on the Shopping Center's website. Secondly, it indicates that there are cameras that apparently record the public road. Finally, it adds that, apparently, the license plates of all vehicles are recorded for statistical analysis and that data cross-references could be made between license plates and the loyalty data of IKEA (which has a store in the shopping center), as well as monitoring the license plates of the center's employees.

From the investigative actions carried out, the following is inferred:

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The respondent had, at the time of the complaint, three video surveillance systems: System I for general video surveillance, System II for monitoring foot traffic and analyzing visits to the Center, and System III for license plate control. Regarding System I, they provided a list of cameras with their field of view and privacy masks, stating that they have proceeded to uninstall cameras that could invade public thoroughfares, providing supporting documentation in this regard. From the images provided, it is not evidenced that they excessively recorded public thoroughfares; nevertheless, they have uninstalled cameras that could record more than what is strictly necessary for the legally established purpose.

Regarding System III, they stated that it was installed at the request of the Security Forces and that it does not cross-reference data with IKEA customers nor identify center employees; it only reads license plates independently. It has been disconnected as a preventive measure. Therefore, there is no evidence that data has been cross-referenced with IKEA customers or that employees have been identified.

System II, for monitoring foot traffic, is composed of two systems or solutions:

- The first only counts people, distorting their faces with a privacy mask, not recording or allowing the visualization of images. Data protection regulations would not apply to this system as it does not identify or make identifiable what is recorded.
- The second performs counts and statistics of visits to the shopping center based on recognizing the clothing of individuals.

Regarding this system, with clothing recognition technology, the following conclusions are summarized:

- It can capture, as an accessory, the faces of customers. Analyzing both the control panel of the tool and the reports generated, no individual data has been found, only data such as visit counts (aggregated data) and statistics.
- They have provided copies of the informational signs and their locations.
- They have provided a copy of a Data Protection Impact Assessment.
- As main measures to limit risks, the respondent declares that they retain images for only 24 hours, store recordings locally in the shopping center, and limit access to the system.
- No evidence has been found that they perform tracking (monitoring subjects moving from one camera's field to another), nor profiling. They have stated that this is not the intended purpose, that they do not perform it, and that it would not be possible with this tool.

- They report that they have disconnected it preventively as of December 23, 2022.

Regarding this second system, its purpose is to count the number of people entering the Shopping Center, to know the number of people visiting each specific establishment, and the time they spend there. The purpose is to optimize the establishment's profitability. Although, exceptionally, it may capture the face of a customer, this data was deleted within 24 hours.

The second system was operational for only a few months, and information about its installation exists as noted in section 9 of the response from the respondent entity.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for

Data Protection.

In accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED:
FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to INGKA CENTRES JEREZ, S.L.U., and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

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